

**WYOMING RURAL PUBLIC TRANSIT PROGRAM FISCAL YEAR (FY) 2024
RECIPIENT AGREEMENT BETWEEN
THE WYOMING DEPARTMENT OF TRANSPORTATION,
LOCAL GOVERNMENT COORDINATION OFFICE
AND THE
CITY OF CHEYENNE TRANSIT PROGRAM**

State Transit Funding Award Information

Recipient Name: City of Cheyenne Transit Program

Recipient UEI: KURKMKZUFMY2

Period of Performance Start and End Date:
October 1, 2023 through December 31, 2024

Budget Period Start and End Date:
October 1, 2023 through September 30, 2024

State Award this Agreement:
\$300,000.00

Total Project Award Including Local Match:
\$300,000.00

Award Name: Wyoming Rural Public Transit

Awarding Agency: WYDOT

Recipient Contact: Renae Jording
Phone: 307-637-6384
Email: rjording@cheyennecity.org

WYDOT Program Mgr.: Brandi Miller
Telephone: 307-777-4384
Email: brandi.miller1@wyo.gov

Recipient County: Laramie

WYDOT Contact for Confirmation of Funds:
Telephone: (307) 777-4434
Email: dotrevenue@wyo.gov

Agreement No.: RPT-24-141

Project No.: FT24141

1. **Parties.** The parties to this Recipient Agreement (Agreement) are the Wyoming Department of Transportation, Local Government Coordination Office (WYDOT), whose address is 5300 Bishop Boulevard, Cheyenne, Wyoming 82009, and the City of Cheyenne Transit Program (Recipient), whose address is 322 West Lincolnway, Cheyenne, Wyoming 82001.
2. **Purpose.** This is an award of state financial assistance from WYDOT to the Recipient. The purpose of this Agreement is to set forth the respective relationships and responsibilities of the Recipient and WYDOT in the administration of the Wyoming Rural Public Transit Program. The Recipient shall use state funds for the Rural Public Transit Program covering the operations, administration, and/or maintenance costs associated with providing public transportation in the Recipient's service area (Project) in Laramie County. All work covered by this Agreement shall comply with the standards of the Americans with Disabilities Act of 1990 (ADA).

Pursuant to Wyo. Stat. §§ 24-15-101 and 24-15-102, WYDOT is authorized to distribute these program funds in accordance with the WYDOT State Management Plan and the Master Agreement with the Federal Transit Administration (FTA) guidelines. This Agreement is also subject to all the Certifications and Assurances required by the FTA. WYDOT and the Recipient desire to secure and utilize grant funds for the public transportation needs in small urban and rural areas in the State of Wyoming.



3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from October 1, 2023, through December 31, 2024. The Subrecipient's timeframe to complete the work under this agreement (Budget Period) is from October 1, 2023, through September 30, 2024. The Period of Performance is from October 1, 2023 through December 31, 2024.

4. **Payment.**

A. WYDOT agrees to reimburse the Recipient for the Project described in Section 2 above. The total reimbursement shall not exceed three hundred thousand dollars (\$300,000.00). Total Project costs exceeding Project estimate of three hundred thousand dollars (\$300,000.00) (including local match) shall be borne by the Recipient.

The Recipient's eligible costs incurred shall be reimbursed upon receipt of an approved WYDOT reimbursement request form, which is provided in WYDOT's project management system. WYDOT requires support documentation for any and all submittals. WYDOT will reimburse those eligible costs based on the program guidelines for the item categories and their appropriate reimbursement ratio. Requests for reimbursement shall be submitted monthly. Reimbursement requests submitted three months or more after the expenses were incurred may not be processed for payment. The final invoice for reimbursement will be accepted by WYDOT no later than forty-five (45) days from September 30, 2024. The basis for reimbursement shall be as follows:

- (i) Net Operating Deficit (Total Operating Expense – Farebox = Net Operating Deficit) is reimbursed with State funds at fifty-six and fifty-six hundredths percent (56.56%), with Local Match at forty-three and forty-four hundredths percent (43.44%).
- (ii) Administration is reimbursed with State funds at eighty percent (80%), with Local Match at twenty percent (20%).
- (iii) Maintenance is reimbursed with State funds at eighty-five percent (85%), with Local Match at fifteen percent (15%).

The Recipient shall initiate and prosecute to completion all actions necessary to enable the Recipient to provide its share of the Project costs at or prior to the time that such funds are needed to meet Project costs. The Recipient shall provide WYDOT monthly reporting of ridership and expenses, and semi-annual inventory updates. The Recipient shall submit invoices in sufficient detail to ensure that reimbursements may be made in conformance with this Agreement. Reimbursement shall be made within forty-five (45) days after submission of invoice pursuant to Wyo. Stat. § 16-6-602.



- B.** Should the Recipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, reimbursement under this Agreement may be withheld until such time as the Recipient performs its duties and responsibilities to the satisfaction of WYDOT.
- C.** Except as otherwise provided in this Agreement, the Recipient shall pay all costs and expenses, including travel, incurred by Recipient or on its behalf in connection with Recipient's performance and compliance with all of Recipient's obligations under this Agreement.
- D.** The Federal Funding Accountability and Transparency Act (FFATA) of 2006 requires that you provide your Unique Entity Identifier (UEI) number to WYDOT. This requirement means you need to be registered with Sam.Gov to be assigned an UEI number. Instructions for this process can be found at www.sam.gov. Additional information regarding this Act may be found at the following sites:

<http://edocket.access.gpo.gov/2010/pdf/2010-22705.pdf>
and
<http://edocket.access.gpo.gov/2010/pdf/2010-22706.pdf>.

5. Responsibilities of the Parties.

- A. Project Scope.** The Recipient shall undertake and complete the Project in accordance with this Agreement.
 - (i)** The Subrecipient shall utilize this grant for the operations, administration, and/or maintenance costs associated with providing public transportation in their service area.
 - (ii)** The Recipient shall abide by the terms as described in Attachment A, Award Letter, and Attachment B, FY 2024 Wyoming Rural Public Transit Annual Program Update, which are attached to and incorporated into this Agreement by this reference.
 - (iii)** WYDOT agrees to reimburse the Recipient in accordance with Section 4 above.
- B. Purchase of Project Equipment.** The purchase of all Project equipment financed in whole or in part pursuant to this Agreement shall be undertaken by WYDOT on behalf of the Recipient or by the Recipient with prior written WYDOT approval in accordance with the procedures established by WYDOT. Purchases of more than four thousand, nine hundred ninety-nine dollars (\$4,999.00) using Federal or State funds are subject to WYDOT approval in accordance with established procedures.



- (i) **Title to Project Equipment.** Title to Project Equipment shall be in the name of the Recipient subject to the restrictions on use and disposition of the Project Equipment set forth herein. The following notification shall be typed on the face of the title document of each vehicle by the County Clerk: “WYDOT Grant – Restricted.” It is the responsibility of the Recipient to ensure the County Clerk is notified of this requirement.
- (ii) **Use of Project Equipment.** The Recipient agrees that the Project equipment, and/or facilities, shall be used for the purpose for which it was acquired, as long as it is needed in the Project. If the Project equipment is no longer needed, or cannot be used for the intended purpose, prior to selling or otherwise disposing of the Project equipment, the Recipient shall immediately notify WYDOT. Before selling or otherwise disposing of the Project equipment, the Recipient must receive a written notification from WYDOT allowing the sale or disposal. The Recipient shall not execute any lease, pledge, mortgage, lien, or other contract touching or affecting the State interest in any Project equipment, nor shall it obligate itself in any other manner, with any third party with respect to the Project equipment, unless such lease, pledge, mortgage, lien, contract, or other obligation is either in conformance with the standards of FTA guidelines or is otherwise expressly authorized in writing by WYDOT, nor shall the Recipient or any other organization that obtains facilities or equipment through this Agreement, by any act or omission of any kind, impair its continuing control over the use of Project equipment. The Recipient shall maintain satisfactory records with regard to the use of the property and submit to WYDOT upon request such information as is required in order to assure compliance with this section. The Recipient shall immediately notify WYDOT in all cases where Project equipment is used in a manner substantially different from that described in the Project description. The Recipient shall maintain an amount and form satisfactory to WYDOT such insurance or self-insurance as will be adequate to protect Project equipment throughout the period of required use. During the Period of Performance, the Recipient shall maintain the Project equipment at a high level of cleanliness, safety and mechanical soundness. The Recipient shall maintain equipment in accordance with its WYDOT approved Maintenance Plan adopted by its Board or Governing Body and on file with WYDOT. WYDOT and the FTA shall have the right to monitor maintenance records in order to confirm that proper upkeep has been conducted pursuant to this section.

- C. **Prohibited Interest.** No member, officer, or employee of the Recipient during his or her tenure or one (1) year thereafter shall have any interest, direct or indirect, in this Agreement or the proceeds thereof.



D. Certifications and Assurances. The Recipient acknowledges that they have read and agree to comply with all requirements in the current FTA Master Agreement and the current FTA Certifications and Assurances. Recipient shall certify that they have read and agree to these requirements annually.

E. Restrictions, Prohibitions, Controls, and Labor Provisions.

(i) Equal Employment Opportunity. In connection with carrying out of the Project, the Recipient shall not discriminate against any employee or applicant for employment because of race, color, age, creed, sex, national origin, or disability. The Recipient shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, creed, sex, age, national origin, or disability. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship.

(ii) Disadvantaged Business Enterprise (DBE) Requirements.

(a) **Policy.** It is the policy of WYDOT that DBEs, defined as Minority Business Enterprises and Woman Business Enterprises, shall have the maximum opportunity to participate in the performance of contracts financed in whole or in part with funds under this Agreement. Consequently, the DBE requirements of 49 CFR Part 26 applies to this Agreement.

(b) **DBE Obligation.** The Recipient or its contractor agrees to ensure that DBEs as defined in 49 CFR Part 26 have the maximum opportunity to participate in the performance of contracts and subcontracts financed in whole or in part with funds provided under this Agreement. In this regard, all Recipients shall take all necessary and reasonable steps in accordance with 49 CFR Part 26 to ensure that DBEs have the maximum opportunity to compete for and perform contracts. The Recipient and their contractors shall not discriminate on the basis of race, color, national origin, or sex in the award and performance of WYDOT assisted contracts.

(iii) Title VI Civil Rights Act of 1964. The Recipient shall comply and shall assure the compliance by contractors and subcontractors under this Project with all the requirements imposed by Title VI of the Civil Rights Act of 1964 (49 U.S.C. 2000d), the Regulations of the Department of Transportation (DOT) issued there under, 49 CFR Part 21, and the Assurance by the Recipient pursuant thereto.



- (iv) Compliance with Elderly and Disabled Regulations. The Recipient shall comply with applicable regulations regarding transportation for elderly and disabled persons, set forth in 49 CFR Part 27 and the Americans with Disabilities Act of 1990.
- (v) Domestic Preferences for Procurement. Requires a preference for the purchase, acquisition, or use of goods, products or materials produced in the United States (including but not limited to iron, aluminum, steel, cement, and other manufactured products) in accordance to 2 CFR 200.322.
- (vi) Prohibition of Certain Telecommunications and Video Surveillance Services or Equipment. Federal law prohibits procuring, obtaining, extending, renewing or entering into contracts for equipment or services from manufacturers listed in 2 CFR 200.216.
- (vii) Never Contract with the Enemy: Awarding agencies and Recipients are subject to the regulations implementing Never Contract with the Enemy in 2 CFR part 183. The regulations in 2 CFR part 183 affect covered contracts, grants, and cooperative agreements that are expected to exceed fifty thousand dollars (\$50,000.00) within the period of performance, are performed outside the United States and its territories, and are in support of a contingency operation in which members of the Armed Forces are actively engaged in hostilities in accordance to 2 CFR 200.215.
- (viii) The Recipient agrees that 49 U.S.C. § 5333 – Labor Standards apply to this Agreement. The Certifications and Warranties are available from the FTA and WYDOT upon request and are incorporated by reference into this Agreement. Below is a brief summary of the requirements as well as program applicability.
 - (a) Prevailing Wage Requirements. Construction work financed in whole or part by the FTA shall require that the provisions of Davis-Bacon Act apply.
 - (b) Employee Protective Arrangements. As a condition of 49 U.S.C. §§ 5307-5312, 5337 and/or 5339, employers are required to provide workers with basic protections as required by the Department of Labor. This includes the Special Warranty; details can be found on the Department of Labor's website at <http://www.dol.gov/olms/regs/compliance/compltransit.htm> or may be obtained by contacting the Department of Labor at (202) 693-0126.



An employer who receives transit funds must protect all covered transit employees affected by the use of the money. The Department of Labor must approve the arrangements made to protect these employees. For covered employees the arrangements include:

- (1) preserving their rights and benefits;
- (2) continuing their collective bargaining rights;
- (3) protecting them against a worsening of their employment conditions;
- (4) assuring jobs for employees of acquired mass transit systems;
- (5) providing priority of reemployment if the employee is laid off or his job is eliminated; and
- (6) providing paid training.

F. Motor Vehicle Safety.

- (i) Motor Vehicle Safety Standards. The motor vehicles will comply with the Motor Vehicle Safety Standards and Pollution requirements as established by the United States Department of Transportation.
- (ii) Motor Vehicle Requirements. When new motor vehicles are purchased, there shall be obtained from each vendor a certification in writing that: "The horsepower of the vehicle is adequate for the speed, range, and terrain in which it will be required to operate and also to meet the demands of all auxiliary power equipment."

G. Nondiscrimination on the Basis of Disability - 504 Regulations.

- (i) The Recipient shall ensure to WYDOT that persons with disabilities and groups representing them have had adequate notice of and opportunity to comment on the present and proposed plans for providing transportation to disabled persons unable to use general public service.
- (ii) The Recipient must certify to WYDOT that special efforts are being made to provide transportation to eligible disabled persons. This service must be reasonable in cost, meet a significant fraction for such transportation needs, and be provided within a reasonable time.
- (iii) The Recipient shall submit a status report to WYDOT (updated every three (3) years). The report must include:
 - (a) A description of the service to the disabled, as compared to the general public service;



- (b) Copies or a summary of the comments received in response to the opportunity to comment;
- (c) A statement of any plans to significantly modify the services; and
- (d) A statement of the resources devoted to the disabled service.

H. Safety Jurisdiction. FTA requires that all Recipients operate their service in a safe manner and not allow any conditions to develop that create a serious hazard of death or injury.

- (i) **Safety Training Classes are a mandated requirement** of the Safety Jurisdiction clause. Driver Safety and Passenger Assistance Training (TSI) or equal approved training, ADA compliance training, and other technical training programs are required on a regular basis (as specified by the State Management Plan). The Wyoming Public Transit Association (WYTRANS) shall maintain records and files of training information. The Recipient shall maintain independent employee training records for its file as well. The Recipient shall notify WYTRANS of any employee-needed training to keep current with the requirements of this section. If safety violations are found and a Recipient fails to correct them, or comply with the training mandate, further financial assistance may be withheld.

I. Emergency Management. All Recipients are required by WYDOT to cooperate and coordinate with Emergency Management agencies in their area during natural or man-made disasters. All FTA vehicles shall be used to transport people and/or equipment as directed by WYDOT. All Recipients shall use their communication equipment to ensure timely evacuation of elderly and disabled people in their area.

J. Records and Reports.

- (i) Establishment and Maintenance of Accounting Records. The Recipient shall establish and maintain, in accordance with requirements established by WYDOT, separate accounts for the Project, either independently or within its existing accounting system, to be known as the Project Account.
- (ii) Documentation of Project Costs. All charges to the Project Account shall be supported by properly executed invoices, contracts or vouchers evidencing in proper detail the nature and propriety of the charges, in accordance with WYDOT rules and regulations. Copies and/or supporting documentation of such invoices, contracts or vouchers may be included with monthly billing statements to cover all charges submitted for payment. The original documentation should be maintained by the Recipient in the Project file and must be available to WYDOT upon request.



- (iii) Checks, Orders and Vouchers. Any check or order drawn by the Recipient with respect to any item which is or will be chargeable against the Project Account will be drawn only in accordance with a properly signed voucher then on file in the office of the Recipient stating in proper detail the purpose for which such check or order is drawn. All checks, invoices, contracts, vouchers, orders or other accounting documents pertaining in whole or in part to the Project shall be clearly identified, readily accessible and, to the extent feasible, kept separate and apart from all other such documents.
- (iv) Reports. The Recipient shall advise WYDOT regarding the progress of the Project at such times and in such manner as WYDOT may require, including, but not limited to meetings and interim reports. The Recipient shall submit, accompanying the monthly reimbursement report, ridership data reports on approved WYDOT forms. WYDOT will not process requests for reimbursement without completed ridership data for the period of the reimbursement request. The Recipient shall submit to WYDOT, or its authorized representatives, an inventory of all vehicles, facilities, and equipment purchased by the Recipient as part of the Project; all transportation services rendered by the Recipient by the use of such vehicles, facilities and equipment; and all relevant Project data and records. The Recipient shall also permit the above-named persons to examine the Recipient's books, records and accounts pertaining to the Project. If the Recipient has an audit performed for its own purposes, the Recipient agrees to provide WYDOT with a copy of such audit report. The Recipient shall keep records and audit reports on file for three (3) years after the close of its fiscal year.

6. Special Provisions.

- A. **Assumption of Risk.** The Recipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Recipient's failure to comply with state or federal requirements. WYDOT shall notify the Recipient of any state or federal determination of noncompliance.
- B. **Conflict of Interest.** Per 2 CFR 200.112, the Recipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- C. **Environmental Policy Acts.** The Recipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules, or regulations.



- D. Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- E. Kickbacks.** The Recipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Recipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee. The Recipient shall comply with the Copeland Anti-Kickback Act (18 U.S.C. § 874) as supplemented in the Department of Labor Regulations (29 CFR, Part 3). This Act provides that the Recipient is prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public works to give up any part of the compensation to which he or she is otherwise entitled.
- F. Limitations on Lobbying Activities.** By signing this Agreement, the Recipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by the Recipient or its subcontractor in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan. The Recipient and subcontractors may also be required to submit an additional certification statement and disclosure form acceptable to WYDOT before commencement of the work.
- G. Mandatory Disclosures.** Per 2 CFR 200.113, the Recipient must disclose, in a timely manner, in writing, to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.
- H. Monitoring Activities.** WYDOT shall have the right to monitor all activities related to this Agreement that are performed by the Recipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any



time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and, to observe personnel in every phase of performance of the related work.

- I. Nondiscrimination.** The Recipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- J. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- K. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Recipient and related to the services and work to be performed under this Agreement, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval of WYDOT.
- L. Suspension and Debarment.** By signing this Agreement, Recipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 44 CFR Part 17, or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Recipient agrees to notify WYDOT by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement.
- M. Administration of Funds.** The Recipient agrees its use of the funds awarded herein is subject to the same administrative requirements as funds awarded by the FTA. As such, the Recipient must comply with the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; any additional requirements set forth by the FTA; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
- N. Copyright License and Patent Rights.** The Recipient acknowledges that federal grantor, the State of Wyoming, and WYDOT reserve a royalty-free, nonexclusive,



unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which the Recipient purchases ownership using funds awarded under this Agreement. The Recipient must consult with WYDOT regarding any patent rights that arise from or are purchased with, funds awarded under this Agreement.

- O. Federal Audit Requirements.** The Recipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. The Recipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, the Recipient shall provide one (1) copy of the audit report to WYDOT and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to WYDOT's records.
- P. Non-Supplanting Certification.** The Recipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. The Recipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- Q. Program Income.** The Recipient shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.

7. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties



set out in this Agreement without the prior written consent of the other party. The Recipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.

- D. Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of the Recipient which are pertinent to this Agreement. The Recipient shall immediately, upon receiving written instruction from WYDOT, provide to any independent auditor accountant all books, documents, papers, electronic data, and records of the Recipient which are pertinent to this Agreement. The Recipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by WYDOT.
- E. Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT shall notify the Recipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** WYDOT may award supplemental or successor contracts for work related to this Agreement or may award contracts to other Recipients for work related to this Agreement. The Recipient shall cooperate fully with other Recipients and WYDOT in all such cases.
- G. Compliance with Laws.** The Recipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Recipient in the performance of this Agreement shall be kept confidential by the Recipient unless written permission is granted by WYDOT for its release. If and when Recipient receives a request for information subject to this Agreement, Recipient shall notify WYDOT within ten (10) days of such request and shall not release such information to a third party unless directed to do so by WYDOT.
- I. Entirety of Agreement.** This Agreement, consisting of seventeen (17) pages; Attachment A, Award Letter, consisting of two (2) pages; and Attachment B, FY



2024 Wyoming Rural Public Transit Annual Program Update, consisting of six (6) pages, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.

- J. Ethics.** Recipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Recipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Recipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Recipient shall be free from control or direction over the details of the performance of services under this Agreement. The Recipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Recipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Recipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. The Recipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or



similar benefits available to State of Wyoming employees will inure to the benefit of the Recipient or the Recipient's agents or employees as a result of this Agreement.

- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- P. Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Recipient in the performance of this Agreement. Upon termination of services, for any reason, Recipient agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- Q. Patent or Copyright Protection.** The Recipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Recipient or its contractors will violate any such restriction. The Recipient shall defend and indemnify WYDOT for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- R. Prior Approval.** This Agreement shall not be binding upon either party, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- S. Insurance Requirements.** Recipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, *et seq.*, and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.
- T. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and the Recipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and



all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.

- V. **Taxes.** The Recipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- W. **Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) days written notice. This Agreement may be terminated by WYDOT immediately for cause if the Recipient fails to perform in accordance with the terms of this Agreement.
- X. **Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Y. **Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Z. **Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- AA. **Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. **Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Recipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.



8. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 #233615

Tyler M. Renner,
Supervising Attorney General

09-12-2023

Date:

**RECIPIENT:
CITY OF CHEYENNE TRANSIT PROGRAM**

Signature

Date:

Print Name & Title

**WYDOT:
WYOMING DEPARTMENT OF TRANSPORTATION**

Keith R. Fulton, P.E. Assistant Chief Engineer –
Planning and Engineering

Date:

ATTEST:

Caitlin Casner, Secretary
Transportation Commission of Wyoming

Date:

Date Prepared: August 1, 2023



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Date:

Date Prepared: August 1, 2023





Mark Gordon
Governor

WYOMING Department of Transportation

"Provide a safe and effective transportation system"

5300 Bishop Boulevard, Cheyenne, Wyoming 82009-3340



Darin J. Westby
Interim Director

July 11, 2023

City of Cheyenne Transit Program
Attention: Renae Jording, Director
322 West Lincolnway
Cheyenne, Wyoming 82001

RE: Fiscal Year 2024 - State Transit Program Award Letter

Dear Renae,

Congratulations, this letter is the City of Cheyenne Transit Program's Fiscal Year 2024 Wyoming Rural Public Transportation Program Award Letter for State Transit Program funding. Funding has been awarded based on the following Project Description: for the purpose of Operating to provide public transportation.

Details of the awarded funding are below:

	Operating	Administration	Maintenance
Award Amount	\$300,000.00	\$0.00	\$0.00
Award Percent	100%		
Local Match Amount	\$0.00	\$0.00	\$0.00
Local Match Percent	0%		
Total State Transit Program Award	\$300,000.00		
Required Local Match	\$0.00		
Total Project Award	\$300,000.00		

Important items to note:

- This letter is NOT a Notice to Proceed and any costs incurred prior to receipt of the Notice to Proceed will not be considered for reimbursement.***

Attachment A to the Fiscal Year 2024 Subrecipient Agreement No. RPT-24-141
between the Wyoming Department of Transportation and the City of Cheyenne Transit Program

- The Subrecipient Agreement is in the drafting stage and will be forwarded to your attention as soon, as it is available.

Should you have any questions, contact me at 307-777-3938 or Shauna.Perkins2@wyo.gov. Thank you for the great work you do for the people of Wyoming!

Sincerely,

Shauna Perkins

Local Government Specialist

CC: Ralph Tarango, WYDOT District Engineer

FY 2024 Wyoming Rural Public Transit Annual Program Update

For guidance on any of the terms listed below, please refer to the Transit Definitions document located in BlackCat as part of the application documents.

All recipients certify that neither it, nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from receiving Federal Funds, nor from federal financial or nonfinancial assistance, nor are any of the recipients suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and CFR 44 Part 17, or are on the disbarred vendors list at www.sam.gov. Please ensure your agency is registered on the www.sam.gov website. ***A copy of the agency's active registration in sam.gov must be uploaded as part of this application. See instructions under individual upload section in BlackCat.

Agency Name	City of Cheyenne
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Local Match for 5311 Project:

In the table below, you **MUST** identify the proposed source and dollar amount of your local match for this project. You must be able to show you have enough local match for your budget request in your BlackCat Application.

	Source of Local Match	Dollar Amount
1.	Match not required. Funds are used for match of 5307 grant.	\$
2.		\$
3.		\$
4.		\$
5.		\$

6.		\$
	Total Local Match	\$

Equal Employment Opportunity:

How many Transit-Related Employees are at your agency?	31
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The table below includes examples of how to count transit-related employees:

- A city planner involved in planning bus routes would be counted as part of the transit-related workforce, but a city planner involved only in land use would not be counted.
- A budget position who processes payments or does any financial processes for the transit program in addition to other responsibilities for the agency.
- An employee focusing on grants management who handles grant applications for several town programs, including transit programs.
- An HR officer managing staffing at the transit agency or managing transit staff as part of a city or county program.
- An employee providing civil rights oversight at a transit agency.
- A security guard or facilities staffer at a transit-specific building would be a transit-related employee.

You need to count anyone that has their hand in anything that deals with your transit program. Please be prepared to explain how you arrived at the number you have entered on this form.

ADA Section:

Does your agency have an ADA Complaint process?	Yes
How do you advertise the complaint process?	It's posted on the City of Cheyenne website.

Please explain your ADA Complaint process:

To resolve complaints promptly and confidentially all complaints, regardless of how they are received i.e., telephone, mail, in person, or email, are directed to the Transit Manager for investigation. CTP has a Suggestions/Compliments/Complaints Form.

When Cheyenne Transit receives an ADA complaint, the Transit Manager will initiate a thorough and timely investigation. A written report of the investigation may be prepared which shall summarize investigatory actions and a summary of results of the investigation. From the investigation results, a determination will be made as to what action is warranted and provide follow-up.

Fixed Route Service (If Applicable):

Describe the Fixed Route Service you operate (description of service area and stops).	We are not currently operating fixed-route service, but will be in the near future.
How will you meet the ADA-Specified Complementary Paratransit requirements as outlined in 49 CFR 37 for service within $\frac{3}{4}$ mile of your route? Please make sure a copy of your Complementary Para-Transit Plan is uploaded in the Resources tab in BlackCat.	During normal operations, we provide paratransit services with a service boundary that exceeds the $\frac{3}{4}$ mile radius.

Demand Response Service:

Describe the Demand Response Service you operate (description of service area).	We provide on-demand service to all members of the public within our service area.
How will you ensure the service is available to the general public?	Members of the general public can call our office or download the Cheyenne Transit App from their Appstore to schedule a trip.
What percentage of riders do you anticipate will be general public?	60%

Do you deliver meals as part of your transportation program? Home Delivery Meals should not interfere with the operation of your transit service.	No
How do you prioritize rides? Ex: Will the general public be bumped from a ride if the bus is full of senior citizens?	First come, first served.

Deviated Fixed Route Service:

Describe what makes your service a Deviated Route.	N/A
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Training:

Do all your drivers have the required training?	Yes	
If you answered NO to the above question, please provide an explanation.	Describe what makes your service a Deviated Route.	N/A
Are all your trainings current?	Yes	
Describe your proposed training schedule for the upcoming fiscal year.	CPR and First Aid training classes are scheduled every two months throughout the year. TSI Driver training classes are scheduled at least three times a year. All required training is completed annually.	

Program Future:

Describe any community or economic changes taking place that you anticipate will affect your transit service in the next five years.	The city is growing, and new areas are being annexed that will eventually require transit service.
Is your agency considering increasing or decreasing service in the upcoming fiscal year?	Recently adopted Transit Development Plan calls for starting up newly defined route service, continuing ADA Paratransit, and continuing on-demand service.

Vehicle and Facility Insurance:

What is the total anticipated cost of vehicle insurance?	\$28,121.00
What is the anticipated cost of your transit facility insurance (if applicable)?	\$20,879.00

Vehicle Type	Number of Vehicles in Fleet	Cost of Insurance per Vehicle
Bus	15	\$1,480
Cut-away	4	\$1,480
Minivan	N/A	N/A
Support Vehicle	N/A	N/A
Total Vehicle Insurance Cost		\$28,121

The section below is ONLY for WIL and WSIL that provide the Statewide Voucher Program

Transportation Voucher Program

The Transportation Voucher Program is a system designed to assist people with disabilities in meeting their transportation needs. Funding must support projects that are aimed at providing additional tools to overcome existing barriers facing persons with disabilities seeking integration into the workforce and full participation in society.

Who is eligible to use the Transportation Voucher program in your service area?	N/A
What is the need for transit service in your area? Why does this need exist? How have you determined this need?	N/A
How will this proposed project address the need for this service?	N/A
How did you determine your budget for this project? Please attach a detailed budget of all costs you will submit for reimbursement.	N/A

What efforts have you made to secure other funding sources for this project?	N/A
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The Wyoming Department of Transportation (WYDOT) is committed to ensuring that no person is excluded from participation in, or denied the benefits of, or be subject to discrimination in the receipt of its services based on race, color, or national origin, or any other characteristics protected by law, including Title VI of the Civil Rights Act of 1964, as amended. Further, under the N/A Americans with Disabilities Act (ADA) of 1990, no entity shall discriminate against any individual with a physical or mental disability in connection with the provision of transportation services.